



By Virat Connects

Marketing Alliance Agreement

We request you to enter into a joint promotional offer with your company (Merchant Partner) and Zodeals.in having corporate office at Virat connects, 2-41/13/PMR/5F MELKIORS PRIDE 5TH FLOOR IZZATH NAGAR KHANAMET HYDERABAD TELANGANA -500081 in order to promote special offers to zodeals.in customers.

1. Offer by uploaded in Zodeals.in by Merchant Partner

Obligations of Merchant Partner

1. Honor the offer as mentioned in zodeals.in
2. Shall be responsible for handling any queries from eligible customers/cardholders regarding the various operational details / fulfilment of the Offer. In case of customer disputes, wherein eligible customers/cardholders were not able to avail of the offer because of genuine reasons, exceptions may be made to maintain the goodwill and reputations between both the parties.
3. Regular MIS and updates on the usage.

Obligations of zodeals.in

1. Promote the offer on offers website www.zodeals.in

Term and Termination

This Marketing Alliance Agreement shall be valid Based on Valid dates of the offer shared and published.

This Agreement, including the Offer herein, may be terminated, by either party by providing a prior written notice of 30 days.

Representation:

Parties hereby represent that: It has the power to enter into this joint promotion activity (offer) with each other.

All acts, conditions and things required to be done, fulfilled and performed to ensure that the obligations assumed by it under this letter of offer are legal, valid, binding and enforceable have been done, fulfilled and performed.

The obligations assumed by it under this letter of offer are legal, valid, binding and enforceable against it.

Compliance with Laws:

Parties agree that it shall at all times and at its own expense (a) strictly comply with all applicable Indian laws, rules, regulations and governmental orders, now or hereafter in effect, relating to its performance of this joint offer, (b) pay all fees and other charges required by such laws, rules and regulations and orders and (c) maintain in full force and effect all licenses, permits, authorization, registration and qualifications from all Indian Governmental departments and agencies to the extent necessary to perform its obligations hereunder.

Non-Disclosure:

Either party agrees that all information and details of the Agreement and the Offer which either party may know or learn during the process of transaction, is confidential information of such other party and shall maintain the confidential information in strict confidentiality by storing it in the same manner as it stores its own confidential information. Either Party shall not disclose the confidential information to any person without the prior written consent of the other party provided that such party may disclose such information (i) as per orders or directions of court of law or statutory authorities, or (ii) to its employees/agents on strictly need-to-know basis who will be bound by all the terms of this Agreement. In addition to exercising such degree of care to protect the confidential information, either party also agrees not to in any way to disclose, copy, reproduce, modify, use, or otherwise transfer the Confidential Information to any other person, group of persons or entity (whether incorporated or not) without obtaining prior express written consent from the other party. Either Party or his authorized persons shall not reverse engineer, disassemble or decompile any prototypes, software or other tangible objects, which embody the Confidential Information. Either Party retains the sole and exclusive ownership as well as all the intellectual property rights in the Confidential Information and no license or any other interest is granted unless expressly agreed to by the other party in writing prior to such disclosure. All derivatives of such confidential information shall qualify as 'confidential information' and this obligation on the other party to maintain confidentiality will continue beyond termination of this Agreement as per the terms and conditions of this Agreement.

Severability:

If any of the provisions of this letter of offer become invalid, illegal or unenforceable in any respect under any law, the validity legality and enforceability of the remaining provisions shall not in any way be affected or impaired.

Indemnity:

Parties hereby expressly agree to indemnify and keep indemnified each other at all times and make good any loss, damage, suffered or incurred by each other due to any willful act by the staff/employee/personnel/representative of the other party, in the performance of their duties and obligations. Parties further agree to indemnify and keep indemnified each other from and against any loss, damage or liability arising as a result of any act of omission or commission or in respect of non-observance of any statutory requirement with respect to the offer.

Further, you shall indemnify, defend and hold harmless us from any and all claims, costs, liabilities, judgments, expenses and damages (including reasonable attorney's fees) arising out of reputation risk to us or failure to provide the offer.

Term and Termination:

Unless otherwise terminated, the term of this offer shall be as in pt no 1 mentioned earlier

Either party reserves the right to terminate this offer by giving a 30 days prior notice in writing to the other party in the event the offer is not launched by concerned party for reasons beyond the reasonable control of the concerned party.

Notwithstanding the above, the provisions of this offer regarding confidentiality, provisions of indemnification and all obligations of Parties arising prior to the expiration or termination of this offer shall survive the expiration or termination of this offer for the period

Law and Jurisdiction:

Any disputes arising out of this Offer shall be governed by and construed in accordance with the laws of India. Parties agree that any legal action or proceeding arising out of or in connection with this Offer shall be subject to the courts in Mumbai only and irrevocably submits to the exclusive jurisdiction of Mumbai Courts only.

Limitation of Liability

In no event shall zodeals.in, nor any officer, affiliate, director, shareholder, agent, sub-contractor (including without limitation technology providers and suppliers), acting in its capacity of providing services to zodeals.in, or employee be liable or any third party for any direct, indirect, incidental, special, punitive, or consequential damages, or lost profits, earnings, or business opportunities, or expenses or costs, even if advised of the possibility thereof, resulting directly or indirectly from, or otherwise arising (however arising, including negligence) out of the use of the services by the client, including, but not limited to, damages resulting from or arising out of the omissions, interruptions, errors, defects, delays in operation, non-deliveries, mis-deliveries, transmissions by third parties, resulting in any failure of the performance of the portal; any agreement entered into between the client and any third party (or the negotiations or discussions conducted in anticipation of any such agreement); the termination or suspension of client's user id and password by zodeals.in pursuant to specified terms and conditions; the failure, or alleged failure, of any product or service purchased or transferred pursuant to the portal to conform to any specifications or terms, whether published on the portal or not; the breach, or alleged breach, of any warranty, express or implied, relating to any such product, service or shipment; or government restrictions, strikes, war, any natural disaster or force majeure, or any other condition beyond zodeals.in's reasonable control. Zodeals.in's liability to the client or any third party in any circumstances is limited to rupees nil.

General Provisions

The invalidity or unenforceability of any provisions of this letter in any jurisdiction shall not affect the validity, legality or enforceability of the remainder of this letter in such jurisdiction or the validity, legality or enforceability of this letter, including any such provision, in any other jurisdiction, it being intended that all rights and obligations of each of us shall be enforceable to the fullest extent permitted by law.

Neither Party shall assign or transfer all or any of its rights, benefits or obligations under the Agreement without obtaining other Party's prior written approval.

Notwithstanding anything contained in this Agreement, neither Party shall be held liable for any default or delay in performance of any obligation under the Agreement on account of any reason beyond its reasonable control, including but not limited to fire, flood, /casualty, lockout, strike, labour disputes, industrial action of any kind, unavoidable accident, breakdown of equipment, national calamity or riot, Act of God, the enactment of any Act of Parliament or the act of any other legally constituted authority, changes to the rules, or default of third party or any cause or event arising out of or attributable to war, other than shortage or lack of money.

The Parties shall not make any announcement regarding this Agreement or its content unless both the Parties have given their prior written consent to such announcement and have approved the text / contents thereof in writing. The Parties agree that such consent shall not be unreasonably withheld. Further, the Parties agree that such consent shall not be required where disclosure or publication is required by law or by either Party's regulator or is made to their respective auditors or professional advisers or relevant stock or securities exchange.

The Parties acknowledge and agree that the relationship between them is solely that of independent contractors and nothing in this Agreement is to be construed as employer / employee, franchise / franchisee, agent / principal, partners, joint ventures, co-owners, or otherwise participants in joint or common undertaking and the relationship is purely on principal-to-principal basis. Unless otherwise provided in this Agreement, the either party shall have no right to enter into any agreement or arrangement for and / or on behalf of either party or to represent to any person, firm or corporation that it has such right or authority, without the prior written consent of the other party. Either party shall be solely liable for all the acts of omissions or commission, deeds and things done by such party and/or its personnel in the course of performance of obligations specified under this Agreement.

This Agreement constitutes the entire agreement between the Parties including all the Annexures with respect to the subject matter hereof and supersedes all prior written agreements, Letter of Intent, understandings and negotiations, both written and oral, between the Parties with respect to the subject matter of this Agreement. No representation, inducement, promise, understanding, condition or warranty not set forth herein has been made or relied upon by any Party hereto. Neither this Agreement nor any provision hereof is intended to confer upon any person other than the Parties to this Agreement any rights or remedies hereunder.

Any provision of the Agreement may be amended or waived if, and only if such amendment or waiver is in writing.

We look forward to a mutually beneficial alliance, please confirm the above terms by signing a copy of this letter, and sending the same back to us.

Yours truly,

Accepted, Agreed and Confirmed

For Zodeals.in

Mr. Prahallad Gunjahalli

Head - Zodeals.in

Virat connects,2-41/13/PMR/5F MELKIORS PRIDE

5TH FLOOR IZZATH NAGAR KHANAMET

HYDERABAD TELANGANA -500081

Viratconnects2@gmail.com

Annexure -1

Complete Offer details and Detailed Terms and Conditions

Validity- As updated in Site

Promotion Code- As updated in Site

Terms and Conditions: - As updated in Site